

HOUSE No. 630

The Commonwealth of Massachusetts

PRESENTED BY:

Kate Lipper-Garabedian and Manny Cruz

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing an education-to-career data center.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kate Lipper-Garabedian</i>	<i>32nd Middlesex</i>	<i>1/9/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>1/9/2025</i>

HOUSE No. 630

By Representatives Lipper-Garabedian of Melrose and Cruz of Salem, a petition (accompanied by bill, House, No. 630) of Kate Lipper-Garabedian and Manny Cruz for legislation to establish a education-to-career data center. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing an education-to-career data center.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws are hereby amended by inserting after chapter 7D the
2 following chapter:-

3 Chapter 7E. Education-to-Career Data Center

4 Section 1. Definitions

5 As used in this chapter, the following words shall, unless the context clearly requires
6 otherwise, have the following meanings:—

7 “Board”, the board of the Massachusetts Education-to-Career Data Center established
8 pursuant to section 4.

9 “Center”, the Massachusetts Education-to-Career Data Center established pursuant to
10 section 2.

“Data element”, a variable or field in an administrative database or record.

“Data provider”, the public agency that provides data elements to the data system.

“Data requests in the public interest”, requests for data that enable families, educators, public agencies, researchers and policymakers to make appropriate choices and investments or provide appropriate interventions to improve educational and workforce outcomes for all individuals.

“Data system”, the Massachusetts Education-to-Career Data System established pursuant to section 2.

“De-identification”, the removal of an individual’s name, address, employer, date of birth, social security number, driver’s license number and other personal information from a data record. Data shall be considered “de-identified” only if satisfying the standard for de-identification set forth in 45 CFR § 164.514(b)(1) or (2) and 34 CFR § 99.31(b)(1).

“Longitudinal data set”, a data set containing information on individuals from various public and private sources over multiple periods of time.

“Research-practice partnerships”, collaborative, long-term relationships between researchers and practitioners that are designed to increase educational or workforce outcomes.

“Secure data enclave”, a secure, remotely accessible environment to aggregate and analyze personal data, as set forth in M.G.L c. 66A, without transferring the underlying data.

“Strategic initiative”, a major initiative to increase educational or workforce outcomes that receives funding from the commonwealth over multiple years or entails substantial changes to policy or practice.

Section 2. The Massachusetts Education-to-Career Data Center

(a) The Massachusetts Education-to-Career Data Center is hereby established within the Executive Office of Technology Services and Security. The center's purpose is to build and operate the Massachusetts Education-to-Career Data System pursuant to section 3.

(b) The center shall be headed by an executive director who shall report to the secretary of information technology services and security. In selecting the executive director, the secretary shall consult with the board. The executive director shall be the chief executive, administrative and operational officer of the center; shall direct and supervise the administrative affairs and the general management of the center and shall attend the meetings of the board. The executive director may appoint and remove such employees deemed necessary to perform the duties of the center.

(c) The center may receive funding for its operations from state appropriations, federal grants, and any other grants or contributions from public agencies or other entities.

(d) The duties of the center shall be to:

(1) Oversee and maintain the data system.

(2) Develop de-identification processes.

(3) Regularly audit and ensure compliance with the Family Education Rights and Privacy Act, 20 U.S.C. § 1232g, the Federal Privacy Act, 5 U.S.C. § 552a, the Fair Information Practices Act, M.G.L. c. 66A, the state unemployment insurance statute, M.G.L. c. 151A, § 46, the security breach statute, M.G.L. c 93H, the workforce development statute, M.G.L c. 23H § 6(b), and all other state and federal data privacy laws without limitation.

(4) Work with public agencies to define statewide education, workforce development, and employment metrics and ensure the integrity and quality of data collected.

(5) Produce standard reports and build and maintain data query tools, reducing duplication of effort for agency staff and providing the public with one location to access education and workforce data.

(6) Facilitate research requests, ensuring that research complies with all state and federal law related to individual privacy, including by building and maintaining a secure data enclave.

(e) Pursuant to 20 U.S.C. § 1232g, the center shall be considered an authorized representative of the department of elementary and secondary education, the department of higher education, and the department of unemployment assistance under applicable state and federal statutes for purposes of accessing and compiling student record and wage data for research purposes. Any disclosures of confidential unemployment compensation information to the center for purposes of populating the data system shall adhere to the requirements of 20 C.F.R. Part 603 and state law concerning the confidentiality of the information.

Section 3. Massachusetts Education-to-Career Data System

(a) There is hereby established the Massachusetts Education-to-Career Data System for the purpose of providing reliable and actionable information on education and workforce outcomes. Information contained in the data system shall be used to:

(1) address disparities in educational and workforce outcomes;

(2) support student guidance and informed student and family decision-making;

(3) foster continuous improvement and accountability for educational and workforce outcomes; and

(4) ensure efficient utilization of public and private resources devoted to furthering educational and workforce outcomes.

(b) The data system shall employ technologies to accomplish the following:

(1) enable the ongoing creation, management, and monitoring of longitudinal data sets in a manner that protects individual privacy;

(2) facilitate utilization of longitudinal data sets and reduce the administrative burden on public agency staff responsible for producing reports and fulfilling data requests in a timely manner, including by providing a public platform for querying the data and building custom reports;

(3) provide access to actionable data for use by students, families, counselors, educators, and workforce development providers; and

(4) enable academic, nonprofit and governmental research to enhance the development of policies focused on educational and workforce outcomes.

(c) At least once per year, the following public agencies shall provide data to the data system:

(1) department of early education and care;

(2) department of elementary and secondary education;

(3) department of higher education;

(4) department of unemployment assistance; and

(5) Any other public agencies that the executive director, subject to the review of the board, identifies as appropriate for ongoing incorporation into the data system.

(d) The executive director may incorporate additional data elements from any public agency or private entity into the data system.

(e) Ownership of data provided to the data system shall be retained by the providing entity.

(f) At all times, the data system shall act in furtherance of the public good and shall be held accountable thereto.

Section 4. Board of the Massachusetts Education-to-Career Data Center

(a) The Massachusetts Education-to-Career Data Center shall be governed by a 15-member board composed of the secretary of information technology services and security or their designee, who shall serve as chair; the secretary of education or their designee; the secretary of labor and workforce development or their designee; the secretary of health and human services or their designee; the commissioner of early education and care or their designee; the commissioner of elementary and secondary education or their designee; the commissioner of higher education or their designee; the director of the department of unemployment assistance or their designee; the undersecretary of housing and community development or their designee; three members of the public appointed by the speaker of the house; and three members of the public appointed by the senate president.

(b) In appointing members of the public to the board, the speaker and senate president shall strive to ensure that the governing board represents the racial and ethnic diversity of the commonwealth and includes persons with experience in data security, quantitative research and helping students and families consume education data. A member of the public shall serve a term of no more than three years and shall not serve more than two consecutive terms or more than six years. For the first appointments of members of the public, to create staggered terms, the speaker and senate president shall appoint one member of the public to serve a one-year term, one member of the public to serve a two-year term, and one member of the public to serve a three-year term.

(c) The governing board shall develop and revise, from time to time, a self-governance process to ensure that it, among other actions, convenes on a regular basis, but no less than quarterly; and posts and archives video recording of all board meetings on the center's public website.

(d) The governing board shall be responsible for the strategic direction and implementation of the data system, including, but not limited to:

(1) ensuring the data system is serving its intended purpose by providing an annual report to the Governor and the legislature, including the number of research requests approved and denied, the number of unique visitors to online data access tools maintained by the center, an annual budget recommendation for the center, and legislative recommendations to adjust the data system's mission or operation to improve educational and workforce outcomes;

(2) establishing a research agenda that balances strategic initiatives, research priorities for data providers, legislative requests, research-practice partnerships, and data requests from outside researchers and the public;

(3) adopting best practice policies related to privacy and security, including creating policies, in accordance with federal and state law and regulation, related to data de-identification as well as governing the collection and use of personally identifiable information from data providers, which may include the creation of an “opt out” policy for students and families;

(4) adopting and adjusting as necessary a data dictionary, data standards, and security protocols to ensure interoperability between the data system and other state data systems using the same source data;

(5) expanding the collected data set by approving additional data providers or requesting additional data points from data providers, consistent with all applicable laws; and

(6) creating, and revising from time to time, a data request process for use by researchers and policymakers, that:

(i) maintains compliance with federal and state laws to protect individual privacy, including by allowing any data provider to exclude its data elements from a request if the data provider determines that access to the data element conflicts with its statutory requirements to protect individual privacy; and giving data providers the opportunity to review and approve the public release of research products derived from their data elements to ensure that the research products conform with statutory requirements to protect individual privacy; and

(ii) facilitates the timely approval of data requests in the public interest, as defined pursuant to section 1, to generate information that is not otherwise available via public query tools or published reports; and

(iii) provides a clear and publicly accessible record of all data requests approved, denied, or withdrawn, including by issuing a clear written explanation for the determination when a request is denied.

Section 5. Strategic Initiatives

(a) The board may determine that a strategic initiative of the commonwealth merits enhanced data collection or evaluation, or both.

(b) At such time, the executive director shall appoint a special committee with two co-chairs. One co-chair shall be a member of the board that represents an agency involved in the strategic initiative or their designee. The second co-chair shall be an academic researcher who is not principally employed by the commonwealth. The special committee shall include at least five members, inclusive of the co-chairs. At least three of the members shall have expertise in statistical methods for program and policy evaluation.

(c) Over the life of the strategic initiative, the special committee shall recommend evaluation methods. To the extent that these methods require additional data elements, the executive director and board shall direct the agencies to prioritize the integration of these data elements into the data system.

Section 6. Research-Practice Partnerships

173 A municipality or group of municipalities of the commonwealth may create research-
174 practice partnerships to improve their understanding of education and workforce outcomes at the
175 local or regional level. The center shall support these efforts by developing policies and
176 procedures to link local data to the data system, in compliance with all state and federal laws to
177 protect individual privacy.

178 SECTION 2. This act shall take effect upon its passage.